
Appeal Decision

Site visit made on 13 July 2026

by Claire Coles MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21 September 2026

Appeal Ref: 6007121

Deerleap Bank, Halstead Lane, Halstead TN14 7EP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr Brian Axford against the decision of Sevenoaks District Council.
 - The application Ref is 25/03516/PIP.
 - The development proposed is erection of dwellings with a minimum of 4 or maximum of 6 net dwellings.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second (technical details consent) stage is when the development proposals are assessed. This appeal relates to the first of these 2 stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.
4. I have sought comments from the main parties on the relevance of the changes to the National Planning Policy Framework (the Framework) dated 17 August 2026 to the appeal and have taken these into account in making my decision.

Main Issues

5. The main issues are:
 - Whether the appeal site is grey belt land and whether the proposal would be inappropriate development in the Green Belt (having regard to the Framework and development plan policies;
 - The effect of the proposal on the openness and purposes of the Green Belt;

- Whether the amount of development would be appropriate having particular regard to development plan policy on density of residential development.

Reasons

6. The appeal site falls wholly within the Green Belt and is located between two settlements, Halstead and Knockholt. The site consists of an existing bungalow, garage and outbuilding and there is sporadic residential development within the immediate surroundings. The site is in existing residential use therefore this use is considered appropriate for the site.

Whether the site is grey belt land and whether the proposal would be inappropriate development in the Green Belt

7. It is common ground between the main parties that the site constitutes grey belt and would not conflict with or criteria i) ii) or iii) of Policy GB7 (g) of the Framework. GB7 (iv) is not relevant to this case. I have not been provided with substantive evidence to take a different view.
8. As a result of the above, the proposal would not be considered inappropriate development within the Green Belt and should not be regarded as harmful to the Green Belt or be required to demonstrate very special circumstances.

Effect on openness

9. It is also common ground between the parties that the site is previously developed land and therefore falls within exception (e) of Policy GB7 of the Framework. Policy GB7 (e) states that the following categories of development are not inappropriate in the Green Belt:

The redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of the Green Belt.

10. The Framework makes it clear that the essential characteristics of the Green Belt are their openness and permanence. Openness can be perceived visually and spatially and factors to be considered include the duration of the development and its ability to return to its original state as well as the degree of activity to be generated.
11. Policy LO7 of the Sevenoaks Core Strategy (CS) refers to development within rural settlements, such as Halstead and Knockholt and states that these will be locations for small scale development. Elsewhere, development will only take place where it is compatible with policies to protect the Green Belt. Policy LO8 of the CS states that the extent of the Green Belt will be maintained, that the countryside will be conserved and that the distinctive features that contribute to the special character of its landscape and its biodiversity will be protected and enhanced where possible. Development should cause no adverse impact on the character of the countryside or the openness of the Green Belt.
12. The erection of four to six dwellings on the site would have a greater impact on the openness of the Green Belt when compared to the existing development on site due to the increase in scale, bulk and mass of built form and the greater spread of built form across the site. There would also be an increase in activity across the

site and the gardens of the proposed development would likely be the subject of residential paraphernalia which could further affect the openness of the site.

13. Despite the identified changes to the site, the site would be visually contained and located between existing residential development. The site also forms only a small part of a wider parcel of Green Belt land and as such, the development would have a fairly limited effect on the wider Green Belt. In conclusion, the proposal would not amount to substantial harm to the openness of the Green Belt. The proposal would therefore constitute appropriate development in the Green Belt in accordance with Policy GB7 (e).

Amount of development

14. Policy SP7 of the CS states that outside urban areas, new residential development would be expected to achieve a density of 30 dwellings per hectare (dph). The policy recognises that development that fails to make efficient use of land for housing may be refused permission. The Regulation 18 Consultation for the New Local Plan seeks a greater density at the edge of villages and rural locations, with a minimum of 30dph and a maximum of 60dph.
15. Policy L3 2.b. of the Framework requires development outside settlements to make the best use of a site's development potential, taking into account the policies in the Framework. Development proposals that do not make efficient use of land in accordance with Policy L3 2 of the Framework should be refused.
16. Policy L3 2.a. recognises that in considering the potential to increase densities, the existing character of an area should be taken into account, in accordance with Policy DP3 of the Framework, but should not preclude development which makes the most of an areas potential.
17. Policy DP3 1. of the Framework states development proposals should respond to their context So that they integrate with and enhance their surroundings.....This should not preclude innovation or change where appropriate, especially where an increased scale or density of development is justified in accordance with policies L2 (making effective use of land) and L3.
18. Based on the size of the site and the maximum number of dwellings that could be built out under this appeal, the site would achieve a density of 13dph, which is significantly below the required density. The density would be lower if four houses were developed instead of six.
19. The appellant considers the proposal complies with the character of the area. The density of development surrounding the site varies from more sporadic detached dwellings to closer knit properties, particularly in Knockholt and newer development in Halstead, including that recently permitted at Warren Court Farm. Whilst it is recognised that the development at Warren Court Farm still does not meet the density target set out in policy SP7 of the CS, it is arguably much closer to the 30dph target than the appeal proposal and demonstrates that a density of close to 30dph is in character with the area.
20. The appellant has not demonstrated that the proposal would achieve the maximum density of development on the site, taking into account all the constraints on the site such as the location of tree root protection zones, landscaping, the location of vehicular access, ecological surveys, drainage and the site layout taking into

account shading from the trees. Whilst there is variation in the density of development surrounding the site, where the Council has a shortage of housing land and a substantial shortfall in the 5-year housing land supply (2.96 years), the proposed development on the site should make the most efficient use of land.

21. In conclusion, the proposal would be contrary to Policy SP7 of the CS insofar as this requires development proposals make the most effective use of land.

Other considerations

22. It is common ground that the Council cannot demonstrate a 5-year housing land supply and can only demonstrate 2.96 years. Policy HO7 (1) of the Framework gives substantial weight to the benefits of providing homes which will contribute towards meeting the needs of the community. The proposal would make a small contribution towards remedying this shortfall and I attach this benefit moderate weight.
23. I have been referred to other planning decisions within the locality where planning permission has been granted for development at a similar density to the appeal site. However, each case is determined on its merits, with particular regard to the context of the site and developmental constraints as well as the emphasis in the Framework on making the most efficient use of land. I therefore give limited weight to these decisions in my determination of this appeal.
24. I have taken account of the representations received including regarding the proposal being too dense. However, for the reasons given above the proposed development does not accord with national policy or local policy regarding density and I am satisfied that a higher density of development on the site can be achieved.

Planning Balance and Conclusion

25. The proposed development would be appropriate development within the Green Belt and whilst there would be some loss of openness, this would not equate to substantial harm.
26. Policy S5 5. of the Framework states that where development would not be inappropriate in the Green Belt, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework and applying paragraph 2 of Policy S5 of the Framework.
27. Policy L3 of the Framework requires development proposals to make efficient use of land. The appellant has not demonstrated that the proposal would achieve the maximum density of development on the site, taking into account all the constraints on the site as identified above.
28. Although I have taken into account the benefits to housing delivery of the proposal and subsequent benefits to the local economy from additional spending, these considerations are not sufficient to outweigh the adverse effects of low-density development on the site. The proposal would therefore not constitute sustainable development in terms of the Framework and therefore the presumption in favour of sustainable development would not apply.

29. Consequently, I conclude that the amount of development would bring the proposal into conflict with the development taken as a whole. Material considerations do not indicate that a decision should be made other than in accordance with the development plan. For the reasons given above, the appeal should be dismissed.

Claire Coles

INSPECTOR